

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TASHAUN NEWLAND,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER ANTONIO
ZORILLA (SHIELD # 10893), POLICE OFFICER
MICHAEL ZWEIFLER (SHIELD # 14406), POLICE
OFFICER JULIO RAMOS (SHIELD # UNKNOWN)
AND JOHN DOE(S) #1-5, POLICE OFFICERS FROM
THE 79TH PRECINCT,

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Harrison, New York
September 19, 2018

Defendants' Addresses:

ZACHARY W. CARTER, ESQ.
Corporation Counsel
Attorney for Defendant City of New York
100 Church Street
New York, New York 10007

Police Officer Michael Zweifler (Shield #14406)
1 Police Plaza
New York, NY 10007

Police Officer Julio Ramos (Shield # Unknown)
1 Police Plaza
New York, NY 10007

Police Officer Antonio Zorrilla (Shield # 10893)
1 Police Plaza
New York, NY 10007

Plaintiff Designates
Kings County
as the place of trial

Index No.:

SUMMONS

**The basis of venue
is the County in which
the tort occurred.**

HAUSMAN & PENDZICK


JONATHAN A. ALVAREZ
Attorneys for Plaintiff
440 Mamaroneck Avenue, Suite 408
Harrison, New York 10528
(914) 946-3344

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
TASHAUN NEWLAND,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
ANTONIO ZORILLA (SHIELD # 10893), POLICE
OFFICER MICHAEL ZWEIFLER (SHIELD # 14406),
POLICE OFFICER JULIO RAMOS (SHIELD #
UNKNOWN) AND JOHN DOE(S) #1-5, POLICE
OFFICERS FROM THE 79TH PRECINCT,

Defendants.

-----X

Plaintiff, TASHAUN NEWLAND, by and through his attorneys, **HAUSMAN &**

PENDZICK, respectfully allege against defendants as follows:

PRELIMINARY STATEMENT

1. This is an action for monetary damages brought pursuant to 42 U.S.C. § 1983, 1988 and the Fourth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York for assault, battery, false arrest and violation of plaintiff's civil rights against THE CITY OF NEW YORK, THE NEW YORK CITY DEPARTMENT and POLICE OFFICER ANTONIO ZORILLA SHIELD # 10893, POLICE OFFICER MICHAEL ZWEIFLER SHIELD # 14406, POLICE OFFICER JULIO RAMOS AND JOHN DOE(S) #1-5, POLICE OFFICERS FROM THE 79TH PRECINCT, individually and in their capacity as New York City Police Officers.

2. It is alleged that the defendants, acting jointly and severally, committed assault, battery, illegal seizure, false imprisonment, false arrest of plaintiff, violating his rights under the Fourth

and Fourteenth Amendments of the United States Constitution and under state and federal common law. It is further alleged that these violations and torts were committed as a result of the policies and customs of the defendant City and NYPD.

CONDITIONS PRECEDENT TO SUIT

3. That prior to the institution of this action, a Notice of Claim was filed and served upon defendants within ninety (90) days after the claim herein arose.
4. That at least thirty (30) days have elapsed since the service of such Notice of Claim and adjustment of payment thereof has been neglected or refused.
5. That on the 14th day of August, 2018, a statutory hearing, pursuant to General Municipal Law Section 50-h, was held in this matter.
6. That this action is being commenced within one year and ninety days after the causes of action herein accrued.

THE PARTIES

7. That at all times herein mentioned, plaintiff was and is a resident of the County of Kings, City and State of New York.
8. That at all times mentioned, the defendant, THE CITY OF NEW YORK (hereinafter "City"), was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
9. That at all times herein mentioned, the defendant City operated, maintained, managed, supervised and controlled a Police Department as part of and in conjunction with its municipal

functions.

10. That at all times herein mentioned, the defendant, POLICE OFFICER ANTONIO ZORILLA SHIELD # 10893 (hereinafter "Zorilla"), was and is a police officer of the defendant City, was acting within the course and scope of his employment with the New York City Police Department (hereinafter "NYPD"), and was acting under the color of law.

11. That at all times herein mentioned, the defendant, POLICE OFFICER MICHAEL ZWEIFLER SHIELD # 14406 (hereinafter "Zweiffler"), was and is a police officer of the defendant City, was acting within the course and scope of his employment with the NYPD, and was acting under the color of law.

12. That at all times herein mentioned, the defendant, POLICE OFFICER JULIO RAMOS (hereinafter "Ramos"), was and is a police officer of the defendant City, was acting within the course and scope of his employment with the NYPD, and was acting under the color of law.

13. That at all times herein mentioned, JOHN DOE(S) #1-5, POLICE OFFICERS FROM THE 79TH PRECINCT (hereinafter "John Does #1-5"), are fictitious names intended to designate NYPD officers involved in the arrest and/or assault of plaintiff, and said defendants were and are police officers of the Defendant City, were acting within the course and scope of their employment with the NYPD, and were acting under the color of law.

THE FACTS

14. On or about May 8, 2018, in the vicinity of 322 Tompkins Avenue, Brooklyn, NY, NYPD Police Officers, including but not limited to Zorilla, Zweiffler, Ramos and John Does # 1-5, approached, forcibly detained and arrested plaintiff without probable cause and without a warrant.

15. That at the above time and place, plaintiff was then assaulted by one or more of the defendant NYPD officers, who struck him with closed fists in the face multiple times while plaintiff was handcuffed unable to defend himself.

16. That at the above time and place, said actions by defendants caused plaintiff to suffer severe physical and psychological injuries.

17. That following his arrest, plaintiff was transported by defendants to the 79th Precinct despite plaintiff's visible physical injuries and requests for medical attention.

18. That after several hours and many requests for medical attention, defendants transported plaintiff to Woodhull Hospital where he was treated for his injuries.

19. That following his arrest plaintiff was imprisoned without his consent and without justification at various locations, until his release from custody approximately twenty-four (24) hours after his arrest.

20. That as a result of the aforementioned actions of defendants, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

21. That all of the causes of action asserted herein fall within one or more of the exceptions set forth in CPLR § 1602.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS

(False Arrest/Imprisonment)

22. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully

herein.

23. That as a result of the foregoing, plaintiff TASHAUN NEWLAND was, without just cause or provocation, maliciously, recklessly, and/or intentionally arrested and imprisoned without probable cause and/or without warrant resulting in an unlawful confinement, deprivation of liberty and other serious emotional injury to plaintiff.

24. That defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the plaintiff without his consent and said actions were not privileged by law.

25. That the aforesaid actions by defendants constitute a false arrest and false imprisonment in violation of plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

26. That as a result of the aforementioned actions of defendants, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Assault)

27. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

28. That as a result of the foregoing, defendants, individually and/or vicariously, by and through their agents, servants and employees, placed plaintiff in apprehension of imminent

harmful and offensive contact, thereby committing an assault upon him.

29. That the aforesaid actions by defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

30. That the aforesaid actions by defendants constitute an assault in violation of plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

31. That as a result of the aforementioned actions of defendants, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

THIRD CAUSE OF ACTION AGAINST ALL DEFENDANTS

(Battery)

32. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

33. That as a result of the foregoing, Plaintiff TASHAUN NEWLAND was without just cause or provocation, maliciously and intentional battered and physically abused causing serious physical and psychological harm to plaintiff.

34. That at the time and place aforesaid, the defendants, individually and/or vicariously by and through their agents, servants and/or employees, without just cause of provocation,

maliciously, recklessly, and/or intentionally battered and physically abused plaintiff causing serious injury to plaintiff.

35. That the aforesaid actions by defendants were unjustified and unnecessary in the performance of their duties as police officers and were unreasonable and unwarranted and constituted an excessive use of force.

36. That the aforesaid actions by defendants constitute a battery in violation of plaintiff's civil rights as protected by the United States Constitution and applicable Federal and New York State statutes.

37. That as a result of the aforementioned actions of defendants, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, severe pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Negligence)

38. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

39. That the individual officers, acting within the scope of their employment, negligently discharged their duties by failing to exercise a reasonable degree of care, and thereby caused plaintiff to sustain the injuries and deprivations aforementioned.

40. That the acts of negligence of said officers include, but are not limited to, forcibly

detaining plaintiff, striking plaintiff upon his face and body after being handcuffed, failing to prevent clear violations of constitutional rights, and other conduct that was improper under the circumstances.

41. That the aforesaid actions by defendants violated the Patrol Guide, including but not limited to, Use of Force and Arrest Procedure policies.

42. That defendant City is responsible for the negligence of its officers committed within the scope of their employment.

43. That the defendant City was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, Defendant City, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by Defendant City and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

44. That the defendant City has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest and a search warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.

45. That the defendant City was negligent by failing to implement a policy with its police department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest search warrant, said

police officers of the City of New York are not to arrest individuals such as the plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

46. That the Defendant City is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:

1. Probable cause must be present before an individual such as the plaintiff herein can be arrested.
2. Force cannot be used against an individual who does not physically resist arrest.
3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

47. That the aforementioned actions by defendants directly and proximately caused severe physical and psychological injuries to plaintiff.

FIFTH CAUSE OF AGAINST ALL DEFENDANTS
(42 U.S.C. § 1983 violations of 4th and 14th Amendments)

48. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

49. That defendants, under the color of law and with the indicia of authority of New York City Police Officers, violated Plaintiff's constitutional rights to be free from the unreasonable and unnecessary use of excessive force, unreasonable seizures and to bodily integrity.

50. That defendants are also liable under 42 U.S.C. § 1983 for failing to intervene to prevent the actions of the defendant police officer who assaulted plaintiff and unnecessarily used excessive force (i.e. striking plaintiff multiple times in the face) during his unlawful arrest.

51. That the aforementioned actions of defendants deprived the plaintiff of the following rights under the United States Constitution:

- a. Freedom from summary punishment;
- b. Freedom from cruel and inhuman punishment;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest; and,
- e. Freedom from the use of excessive force during the arrest process.

52. That defendants subjected the plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights or with deliberate indifference to those rights secured by the Fourth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the individual defendants are liable.

53. That each of the defendants' actions directly and proximately caused plaintiff to suffer severe and permanent injuries of a physical and psychological nature.

SIXTH CAUSE OF ACTIONS AGAINST DEFENDANT CITY
(*Monell* claim)

54. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

55. That prior to May 8, 2018, and since, the defendant City has permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force against civilians by police officers of its police department and illegal arrests by police officers of its police department. Although such illegal use of force was improper, the officers involved were not prosecuted, disciplined or subject to restraint, and such incidents were in fact covered up with

official claims that the use of force was justified and proper. As a result, police officers of defendant City were caused and encouraged to believe that civilian persons could be abused under the circumstances not requiring the use of excessive force, and that such conduct would in fact be permitted by the defendant City.

56. That in addition to permitting a pattern and practice of abuse of civilian persons, defendant City has failed to maintain a proper system for investigation of all incidents of unjustified beatings and excessive use of force by police officers.

57. That defendant City has maintained a system of review of unjustified and excessive use of force, and illegal arrests by police officers that has failed to identify the improper use of force by police officers and failed to subject officers who assault citizens to discipline, closer supervision or restraint and who illegally arrested citizens, to the extent that it has become the custom of defendant City to tolerate the improper, illegal arrests and other wrongful actions by police officers.

58. That upon information and belief, specific flaws in the defendant City's use of force review process include, but are not limited to, the following:

- a. Preparing reports regarding investigations of excessive force claims as routine point-by-point justifications of the police officer's actions, regardless of whether such actions are justified;
- b. Police officers investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses, and uncritically rely on reports by police involved in the incident;
- c. Police officers investigating excessive force claims fail to include in their reports relevant factual information which would tend to contradict the statements of the

police officers involved;

- d. Reports in use of force cases are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect, contradictory or incomplete information.

59. That the aforesaid acts, omission, systemic flaws, policies and customs of the defendant City caused police officers of its police department to believe that excessive force and other improper actions would not be aggressively, honestly and properly investigated, with the foreseeable result that officers would most likely use excessive force in situations where such force is neither necessary nor reasonable.

60. That as a direct result of the aforesaid acts, omissions, systemic flaws, policies and customs of the defendant City, and defendants Zorilla, Zweiffler, Ramos and John Does # 1-5 unjustifiably assault and detained plaintiff all in violation of his civil and constitutional rights, plaintiff was deprived of his liberty, was subjected to great indignity, humiliation, pain and great distress of mind and body and was held up to scorn and ridicule, was injured in his character and reputation, was prevented from attending his usual business and avocation, was injured in his reputation in the community and the said plaintiff has been otherwise damaged.

SEVENTH CAUSE OF ACTION AGAINST INDIVIDUAL DEFENDANTS
(Punitive Damages)

61. Plaintiff, TASHAUN NEWLAND, repeats, reiterates and re-alleges all of the allegations contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

62. That the acts of the individual defendants were willful, wanton, reckless, malicious and oppressive and were motivated solely by a desire to harm plaintiff without regard for his well-

being and were based on a lack of concern and ill-will towards plaintiff.

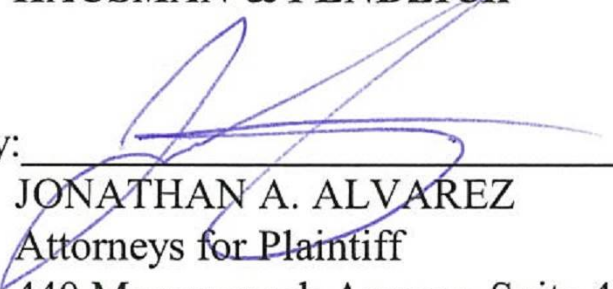
63. That the aforementioned actions by defendants warrant an award of punitive damages.

WHEREFORE, the Plaintiff, TASHAUN NEWLAND, demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which would otherwise have jurisdiction. Additionally, Plaintiff demands in respect of all causes of action, punitive damages and attorney fees pursuant to 42 U.S.C § 1988.

Dated: Harrison, New York
September 19, 2018

Yours, etc.,

HAUSMAN & PENDZICK

By: 
JONATHAN A. ALVAREZ
Attorneys for Plaintiff
440 Mamaroneck Avenue, Suite 408
Harrison, New York 10528
(914) 946-3344
(914) 946-9733

ATTORNEY VERIFICATION

STATE OF NEW YORK, COUNTY OF WESTCHESTER

SS:

I, the undersigned, an attorney admitted to practice in the Courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiff(s) in the within action; I have read the foregoing Verified Complaint and know the contents thereof; the same is true to my own knowledge, except as to the matters I believe to be true. The reason this verification is made by me and not by my client, is that my client is not presently in the County where I maintain my offices. The grounds of my belief as to all matters not states upon my own knowledge are the materials in my file and the investigation conducted by my office.

Dated: Harrison, New York
September 19, 2018


JONATHAN A. ALVAREZ